

REAL ESTATE TRANSFER DISCLOSURE STATEMENT
(CALIFORNIA CIVIL CODE §1102, ET SEQ.)

☐ This property is a duplex, triplex or fourplex. A TDS is required for all units. This TDS is for all units (or ☐ only unit(s)_____).

This disclosure statement pertains to the real estate located within the boundaries of the city of _____, situated in _____, within the state of California. The property is defined as _____.

This document serves as a disclosure of the current condition of the aforementioned property, in accordance with Section 1102 of the Civil Code, as of _____. It should be noted that this statement does not constitute any form of warranty from the seller(s) or any representative(s) acting on behalf of the principal(s) involved in this transaction. Additionally, it does not serve as a replacement for any inspections or warranties that the principal(s) may choose to procure.

I. COORDINATION WITH OTHER DISCLOSURE DOCUMENTS

This Real Estate Transfer Disclosure Statement is generated in accordance with Section 1102 of the Civil Code. Additional statutes may necessitate disclosures based on the specific characteristics of the given real estate transaction, such as special study zones and purchase-money liens pertaining to residential property.

Substituted Disclosures: All mandatory disclosures, both those listed below and those stipulated by legal requirements, including the Natural Hazard Disclosure Report/Statement encompassing details like airport disturbances, earthquakes, fires, floods, or special assessments, have been or will be provided in conjunction with this real estate transfer. These disclosures are intended to fulfill the disclosure responsibilities outlined in this form when they pertain to the same subject matter:

- ☐ Inspection reports conducted in accordance with the terms of the sales contract or deposit receipt.
- ☐ Additional inspection reports or disclosures: _____

☐ No substituted disclosures for this transfer.

II. SELLER'S INFORMATION

The Seller provides the following information with the understanding that, while it is not a guarantee, potential Buyers might use this information to determine whether and under what conditions to acquire the property in question. The Seller grants authorization to any agent(s) representing any principal(s) involved in this transaction to furnish a copy of this statement to any individual or entity related to any ongoing or potential property sale.

The following statements are made by the Seller(s) and do not represent the views or statements of any Agent(s), if applicable. This information serves as a disclosure and is not meant to be a component of any agreement between the Buyer and Seller.

Seller ☐ is ☐ is not occupying the property.

A. The subject property has the items checked below:*

- | | | |
|--|---|---|
| ☐ Range | ☐ Wall/Window Air Conditioning | Pool: |
| ☐ Oven | ☐ Sprinklers | ☐ Child Resistant Barrier |
| ☐ Microwave | ☐ Public Sewer System | ☐ Pool/Spa Heater: |
| ☐ Dishwasher | ☐ Septic Tank | ☐ Gas ☐ Solar ☐ Electric |
| ☐ Trash Compactor | ☐ Sump Pump | Water Heater: |
| ☐ Garbage Disposal | ☐ Water Softener | ☐ Gas ☐ Solar ☐ Electric |
| ☐ Washer/Dryer Hookups | ☐ Patio/Decking | Water Supply: |
| ☐ Rain Gutters | ☐ Built-in Barbecue | ☐ City ☐ Well |
| ☐ Burglar Alarms | ☐ Gazebo | ☐ Private Utility |
| ☐ Carbon Monoxide Device(s) | ☐ Security Gate(s) | or Other _____ |
| ☐ Smoke Detector(s) | ☐ Garage: | Gas Supply: |
| ☐ Fire Alarm | ☐ Attached ☐ Not Attached | ☐ Utility ☐ Bottled (Tank) |
| ☐ TV Antenna | ☐ Carport | ☐ Window Screens |
| ☐ Satellite Dish | ☐ Automatic Garage Door | ☐ Window Security Bars |
| ☐ Intercom | Opener(s) | ☐ Quick Release Mechanism on |
| ☐ Central Heating | ☐ Number Remote Controls _____ | Bedroom Windows |
| ☐ Central Air Conditioning | ☐ Sauna | ☐ Water-Conserving Plumbing Fixtures |
| ☐ Evaporator Cooler(s) | ☐ Hot Tub/Spa: | |
| ☐ | ☐ Locking Safety Cover | |

Exhaust Fan(s) in _____ 220 Volt Wiring in _____ Fireplace(s) in _____

☐ Gas Starter _____ ☐ Roof(s): _____

- ☐ Are there, to the best of your (Seller's) knowledge, any of the above that are not in operating condition?
- ☐ Yes ☐ No. If yes, then describe. (Attach additional sheets if necessary) _____

(*see note on page 2)

Buyer's Initials (____)(_____)

Seller's Initial _____(_____)

(PAGE 1 OF 3)

Property Address: _____ Date: _____

B. Are you (Seller) aware of any significant defects/malfunctions in any of the following? ☐ Yes ☐ No. If yes, check appropriate space(s) below.

☐ Interior Walls ☐ Ceilings ☐ Floors ☐ Exterior Walls ☐ Insulation ☐ Roof(s) ☐ Windows ☐ Doors ☐ Foundation ☐ Slab(s)
☐ Driveways ☐ Sidewalks ☐ Walls/Fences ☐ Electrical Systems ☐ Plumbing/Sewers/Septics ☐ Other _____
Components (Describe: _____)

If any of the above is checked, explain. (Attach additional sheets if necessary.): _____

* The installation of any listed appliance, device, or amenity is not a prerequisite for the sale or transfer of the residence. It's important to note that the carbon monoxide device, garage door opener, or child-resistant pool barrier may not meet the safety standards as defined in the following sections of the Health and Safety Code: Chapter 8 (starting with Section 13260) of Part 2 of Division 12 for carbon monoxide device standards, Chapter 12.5 (starting with Section 19890) of Part 3 of Division 13 for automatic reversing device standards, and Article 2.5 (starting with Section 115920) of Chapter 5 of Part 10 of Division 104 for pool safety standards. Furthermore, the window security bars may lack quick-release mechanisms in compliance with the 1995 edition of the California Building Standards Code. It's essential to be aware that Section 1101.4 of the Civil Code mandates that all single-family residences constructed on or before January 1, 1994, must be equipped with water-conserving plumbing fixtures after January 1, 2017. Additionally, starting from January 1, 2014, any alteration or improvement to a single-family residence built on or before January 1, 1994, requires the installation of water-conserving plumbing fixtures as a condition for final approval. The fixtures in this dwelling may not adhere to the requirements outlined in Section 1101.4 of the Civil Code.

C. Are you (Seller) aware of any of the following:

1. Substances, materials, or products which may be an environmental hazard such as, but not limited to, asbestos, formaldehyde, radon gas, lead-based paint, mold, fuel or chemical storage tanks, and contaminated soil or water on the subject property ☐ Yes ☐ No
2. Features of the property shared in common with adjoining landowners, such as walls, fences, and driveways, whose use or responsibility for maintenance may have an effect on the subject property ☐ Yes ☐ No
3. Any encroachments, easements or similar matters that may affect your interest in the subject property ☐ Yes ☐ No
4. Room additions, structural modifications, or other alterations or repairs made without necessary permits ☐ Yes ☐ No
5. Room additions, structural modifications, or other alterations or repairs not in compliance with building codes ☐ Yes ☐ No
6. Fill (compacted or otherwise) on the property or any portion thereof ☐ Yes ☐ No
7. Any settling from any cause, or slippage, sliding, or other soil problems ☐ Yes ☐ No
8. Flooding, drainage or grading problems ☐ Yes ☐ No
9. Major damage to the property or any of the structures from fire, earthquake, floods, or landslides ☐ Yes ☐ No
10. Any zoning violations, nonconforming uses, violations of "setback" requirements ☐ Yes ☐ No
11. Neighborhood noise problems or other nuisances ☐ Yes ☐ No
12. CC&R's or other deed restrictions or obligations ☐ Yes ☐ No
13. Homeowners' Association which has any authority over the subject property ☐ Yes ☐ No
14. Any "common area" (facilities such as pools, tennis courts, walkways, or other areas co-owned in undivided interest with others) ☐ Yes ☐ No
15. Any notices of abatement or citations against the property ☐ Yes ☐ No
16. Any lawsuits by or against the Seller threatening to or affecting this real property, claims for damages by the Seller pursuant to Section 910 or 914 threatening to or affecting this real property, claims for breach of warranty pursuant to Section 900 threatening to or affecting this real property, or claims for breach of an enhanced protection agreement pursuant to Section 903 threatening to or affecting this real property, including any lawsuits or claims for damages pursuant to Section 910 or 914 alleging a defect or deficiency in this real property or "common areas" (facilities such as pools, tennis courts, walkways, or other areas co-owned in undivided interest with others) ☐ Yes ☐ No

If the answer to any of these is yes, explain. (Attach additional sheets if necessary.): _____

- D. 1.** The Seller affirms that, upon the completion of escrow, the property will conform to Section 13113.8 of the Health and Safety Code. This compliance entails having functional smoke detector(s) that are officially approved, listed, and installed in adherence to the regulations of the State Fire Marshal and relevant local standards.
- 2.** The Seller affirms that, upon the conclusion of escrow, the property will adhere to Section 19211 of the Health and Safety Code. This means that the water heater tank(s) will be properly braced, anchored, or strapped in accordance with the relevant legal requirements.

Property Address: _____ Date: _____

The Seller confirms that the information provided here is accurate and truthful to the best of the Seller's knowledge as of the date of signing.

Seller _____ Date _____

Seller _____ Date _____

_____ By _____ Date _____
(Please Print) (Associate Licensee or Broker Signature)

V. Both the Buyer(s) and Seller(s) may find it advisable to seek expert guidance and/or property inspections. They can then include suitable provisions in a contract between the Buyer and Seller(s) concerning any advice, inspections, or identified defects.

I/WE ACKNOWLEDGE RECEIPT OF A COPY OF THIS STATEMENT.

Seller _____ Date _____ Buyer _____ Date _____

Seller _____ Date _____ Buyer _____ Date _____

Agent (Broker Representing Seller) _____ By _____ Date _____
(Please Print) (Associate Licensee or Broker Signature)

Agent (Broker Obtaining the Offer) _____ By _____ Date _____
(Please Print) (Associate Licensee or Broker Signature)

SECTION 1102.3 of the Civil Code grants the Buyer the option to void a purchase contract within a minimum of three days following the delivery of this disclosure, provided that the delivery takes place after the signing of an offer to purchase. If you intend to exercise your right to rescind the contract, it is imperative that you take action within the specified timeframe.

A real estate broker possesses expertise in real estate matters. If you require legal counsel, it is recommended that you consult with your attorney.

